

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

=====X  
TREMAINE HAYWARD,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, NEW YORK CITY  
POLICE DEPARTMENT, THE NEW YORK CITY  
DEPARTMENT OF CORRECTIONS, P.O. GEORGE  
ALLEN (SHIELD NO. 6387), SGT. YANCY BLOWE,  
SGT. LAWRENCE, and JOHN DOES #1-3,

Defendant(s).

=====X  
TO THE ABOVE NAMED DEFENDANTS:

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York  
Dec. 18, 2014

  
By: Steven Seener, Esq.  
SEENER & SEENER  
Attorneys for the Plaintiff(s)  
Office & P.O. Address  
11 PARK PLACE  
10<sup>TH</sup> FLOOR  
New York, New York 10007  
(212) 766-2050

Defendant(s) address:

1. The City of New York: 100 Church Street, New York, NY 10007.
2. NEW YORK CITY POLICE DEPT. c/o Corp. Counsel 100 Church Street, N Y, N Y 10007

INDEX NO.  
Plaintiff  
designates  
Kings County  
as the place of  
trial.  
The basis of  
venue  
is situs of  
accident.  
**SUMMONS WITH  
NOTICE**

Plaintiff  
resides at  
685 Ralph Ave.  
Brooklyn, NY 11212  
County of  
Kings

3. P.O. George Allen, Shield # 6387, 73<sup>rd</sup> Pct., Brooklyn, NY.
4. Sgt. Yancy Blowe, Command 165 (PBBKN), Brooklyn, NY.
5. Sgt. Lawrence, Command 73<sup>rd</sup> Pct., Brooklyn, NY.

Notice: The nature of this action is NEGLIGENCE, VIOLATION OF CIVIL RIGHTS; 42 USC SEC. 1983 ACTION; FALSE ARREST; TORT; INTENTIONAL TORT; NEGLIGENCE; VIOLATION OF CONSTITUTIONAL RIGHTS (NEW YORK STATE and U.S. CONSTITUTIONS); UNLAWFUL IMPRISONMENT; PERSONAL INJURIES; FAILURE TO AFFORD A PRISONER ADEQUATE TREATMENT; NEGLIGENCE OF A PRISONER IN CUSTODY OF THE DEFENDANT; AND VIOLATION OF A PRISONER'S RIGHTS; AND MALICIOUS PROSECUTION.

The relief sought is monetary damages.

Upon your failure to appear, judgment will be taken against you by default for an amount to be determined by a jury or trier of fact at the time of trial and in an amount which exceeds the jurisdictional limitations of all the lower courts which would otherwise have jurisdiction, together with interest from April 19, 2014, and the costs of this action.

INDEX NUMBER PURCHASED AND SUMMONS AND COMPLAINT FILED:

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

TREMAINE HAYWARD,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY  
POLICE DEPARTMENT, THE NEW YORK CITY  
DEPARTMENT OF CORRECTIONS, P.O. GEORGE  
ALLEN (SHIELD NO. 6387), SGT. YANCY BLOWE,  
SGT. LAWRENCE, and JOHN DOES #1-3,

Defendants.

INDEX #

COMPLAINT

Plaintiff, TREMAINE HAYWARD, complaining of the defendants, by his attorneys,  
SEENER & SEENER, ESQS., hereby sets forth and alleges upon information and belief, as  
follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, the plaintiff was resident of the  
County of Kings, City and State of New York.
2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW  
YORK, was and still is a municipal corporation, duly formed and existing by virtue of the  
laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, THE NEW YORK  
CITY POLICE DEPARTMENT, was and still is a department of the defendant, THE CITY  
OF NEW YORK, and duly formed and existing by virtue of the laws of the State of New  
York.



4. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY DEPARTMENT OF CORRECTIONS, was and still is a department of the defendant, THE CITY OF NEW YORK, and duly formed and existing by virtue of the laws of the State of New York.

5. That at all times hereinafter mentioned, the defendant P.O. George Allen, shield # 6387, Sgt. Yancy Blowe, and Sgt. Lawrence were residents of the State of New York.

6. That the plaintiff has complied with all the conditions precedent to the bringing of this action and more particularly, that a Notice of Claim was served on the defendant, THE CITY OF NEW YORK within 90 days of his arrest and injuries of April 19, 2014 and that a statutory hearing pursuant to Section 50-H of the Municipal Law was held; and that more than 30 days have elapsed to date from the service of the notice of claim and the plaintiff's claims remain unsolved.

7. The action is also a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York and the New York State Constitution; further the defendants failed to medically treat the plaintiff, an injured prisoner in their custody and, as a consequence, plaintiff sustained permanent and serious injuries.

8. The arrest, search, detainment and prosecution of the plaintiff constituted a deprivation of the plaintiff's constitutional rights; the initial occurrence took place on April 19, 2014 commencing at approximately 8:30 p.m. at 685 Ralph Avenue, Apt. 1A, Brooklyn, New York and continuing at other locations, including a police precinct and the New York

City Department of Corrections facilities; at that time and place plaintiff, TREMAINE HAYWARD, was falsely arrested, unjustly, falsely imprisoned, and mistreated by police officers, had his civil rights violated by the defendants, City of New York, the New York City Police Department and their agents, servants and/or employees, and officers, including defendants, Police Officer George Allen (Shield No. 6387), Sgt. Yancy Blowe, Sgt. Lawrence and other unknown officers, John Does # 1-3, plaintiff was falsely arrested and/or arrested without probable cause, without reasonable cause, without legal process and without legal justification and mistreated by the defendants and/or police officers present; he was thereafter taken into custody and kept and detained in custody of the defendant, the New York City Police Department and defendant, New York City Department of Corrections against his will; he was held by officers of the New York City Police Department and New York City Department of Corrections; plaintiff was held illegally by the police, at a police precinct (73rd pct.) and other places where he was held by the defendants, City of New York and/or New York City Police Dept., P.O. George Allen, Sgt. Yancy Blowe, Sgt. Lawrence and other officers that the plaintiff was actually a crime victim and was stabbed and as a result he was caused to suffer serious, severe injuries, physical injuries, psychological injuries and emotional injuries and special damages since he was refused treatment in a timely manner.

9. Moreover, the officers present and the arresting officers were unprofessional since they failed to fully investigate before arresting the plaintiff, instead of the perpetrator of the crime and in refusing timely medical treatment.

10. Plaintiff was handcuffed; plaintiff was detained; plaintiff was arrested, arrested without a warrant, held and searched without a warrant or probable cause; the

plaintiff was held illegally, falsely accused of committing a crime or crimes, and illegally handcuffed and searched, including a strip search; the plaintiff was unlawfully stopped and accosted without a warrant or probable cause or justification or legal basis in violation of his rights under the New York State and U.S. Constitutions; Plaintiff was subjected to false arrest, unlawful and improper imprisonment, illegal detainment, to torture, unnecessary force, mistreatment, suffered physical injuries and loss of freedom.

11. Further, the police officers and the police department and defendants involved acted under color of law;

the detainment of the Plaintiff was baseless and without lawful basis;

the defendants, City of New York, New York City Police Department, P.O. George Allen, Sgt. Yancy Blowe, Sgt. Lawrence and other New York City police officers (John Does # 1-3) arrested the plaintiff without probable cause and unlawfully detained and handcuffed him; the plaintiff's rights were violated, in violation of the Fourth and Fourteenth Amendments to the United States Constitution. Plaintiff was deprived of his constitutional and common law rights and rights under the United States Constitution and New York State Constitution when the individual defendants unlawfully arrested, stopped, searched, confined plaintiff, brutalized, manhandled, injured plaintiff and caused the unjustifiable arrest of the plaintiff, detention of the plaintiff.

12. The occurrence and events involving the plaintiff herein took place initially on April 19, 2014 at approximately 8:30 p.m. commencing in and/or near 685 Ralph Avenue, Apt #1A, Brooklyn, NY, and continuing into a police vehicle, and a Police Precinct all in the County of Kings, City and State of New York and the NYC Dept. of Corrections (Rikers Island Facility) the plaintiff was also required to make several appearances in



Criminal Court in Kings County, NY, and before a grand jury until the case against him was dismissed.

13. At that time and place plaintiff, TREMAINE HAYWARD, was falsely arrested, unjustly and falsely imprisoned, had his civil rights violated by the defendants, City of New York, New York City Police Dept., P.O. George Allen, Sgt. Yancy Blowe, Sgt. Lawrence and other officers, police officers, agents, servants and/or employees of the defendants (other police officers John Does #1-3 being unknown at this time) and the defendant New York City Department of Corrections.

14. Plaintiff was falsely arrested and/or arrested without probable cause, without reasonable cause, without legal process and without legal justification; the plaintiff, TREMAINE HAYWARD, was thereafter taken into custody in kept in detainment, in the custody of the Police Dept. and New York City Corrections Department against his will; he was held by officers of the New York City Police Dept.; plaintiff was held illegally by the City of New York and/or NYC Police Dept. and/or New York City Corrections Dept.

15. That plaintiff, TREMAINE HAYWARD, was caused to suffer serious, severe emotional injuries and physical injuries, special damages, loss of freedom, loss of self esteem and he was humiliated and shamed in front of his family, friends and others.

16. That plaintiff, TREMAINE HAYWARD, was handcuffed and held against his will without a legal reason and humiliated and embarrassed and strip searched; he was arrested and charged falsely with crimes; he was in police custody from April 19, 2014 and he was released approximately three to four weeks later.

17. Plaintiff, TREMAINE HAYWARD, was detained; plaintiff, TREMAINE HAYWARD, was arrested, held and searched without a warrant or probable cause; the

plaintiff, TREMAINE HAYWARD, was held illegally, falsely accused of committing a crime and handcuffed; the plaintiff, TREMAINE HAYWARD, was unlawfully stopped and accosted without a warrant or probable cause.

18. The plaintiff, TREMAINE HAYWARD, was stopped and arrested without cause or justification or legal basis in violation of his rights under the New York State and U.S. Constitutions. The plaintiff, TREMAINE HAYWARD was subjected to false arrest, unlawful and improper imprisonment, illegal detainment, and unnecessary force; further, the defendants acted under color of law, specifically defendants, P.O. George Allen, Sgt. Yancy Blowe, Sgt. Lawrence, and other defendants, John Does #1-3.

19. The detainment of the plaintiff, TREMAINE HAYWARD, was baseless and illegal.

20. Defendants, P.O. George Allen, Sgt. Yancy Blowe, and Sgt. Lawrence were and still are at all times relevant herein officers, employees, and/or agents of the New York City Police Department and/or City of New York and were residents of the State of New York.

21. On the date of incident, April 19, 2014, defendants, P.O. George Allen, Sgt. Yancy Blowe, Sgt. Lawrence, and police officers John Does #1-3 were employees of the defendants, New York City Police Department and/or City of New York.

22. Defendants, P.O. George Allen, Sgt. Yancy Blowe, Sgt. Lawrence, and New York City Police Officers John Does #1-3 are and were at all times herein relevant officers, employees, and agents of the New York City Police Department.

23. At all times herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and



officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties; they were acting for and on behalf of the defendants, New York City Police Department and/or City of New York, at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department and/or City of New York.

24. Defendant, City of New York, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department and a corrections department which act as its agents in the area of law enforcement and correctional detention and for which it is ultimately responsible. The defendant, City of New York, assumed the risks incidental to the maintenance of a police force and the employment of police officers and corrections employees as said risks attach to the public consumers of the services provided by the New York City Police Department, and the NYC Department of Corrections.

25. That on the above stated date and time defendants, P.O. George Allen, Sgt. Yancy Blowe, Sgt. Lawrence and/or other NYC Police Officers John Does 1-3, accosted, stopped, and arrested plaintiff without probable cause.

26. The defendant police officers then arrested and detained the plaintiff and handcuffed him without probable cause or legal justification.

27. Defendants, P.O. George Allen, Sgt. Yancy Blowe, Sgt. Lawrence and/or other police officers JOHN DOES 1-3 observed, other officers or defendants violating plaintiff's rights under the Constitutions of the United States and New York State and did

nothing to prevent the violation of his Constitutional Rights.

28. Failure to intervene by the individually named defendant police officers caused plaintiff to sustain physical, psychological and emotional trauma.

## **SECOND CAUSE OF ACTION**

### **Violation of Plaintiff's Fourth Amendment and**

### **Fourteenth Amendment Rights**

29. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully set forth at length herein.

30. Defendants, P.O. George Allen, Sgt. Yancy Blowe, Sgt. Lawrence, and Police Officers John Does #1-3, who were acting in concert and within the scope of their authority, arrested and caused plaintiff to be imprisoned and violated plaintiff's right to be free of an unreasonable search and seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

31. Plaintiff suffered emotional injuries and physical injuries as a result of his incarceration.

32. As a result of plaintiff's unlawful arrest, detention, lack of medical treatment, search and seizure, amounting to a violation of his civil rights, plaintiff suffered degradation, humiliation, loss of reputation and esteem and various other emotional injuries, as well as economic harm.

## **THIRD CAUSE OF ACTION**

33. Plaintiff reiterates and realleges the facts stated in paragraphs 1 through 32 as

if stated fully herein.

34. As a result of their actions, Defendants, acting under “Color of law,” deprived Plaintiff of his rights to freedom and deprived him of liberty without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. 1983.

35. Defendants subjected Plaintiff to these deprivations of his rights either maliciously or by acting with a reckless disregard whatever Plaintiff’s rights.

36. As a direct and proximate result of the acts of Defendants, plaintiff suffered psychological and economic injuries, endured great pain and mental suffering, was deprived of his physical liberty.

#### **FOURTH CAUSE OF ACTION**

37. Plaintiff reiterates and realleges the facts stated in paragraphs 1 through 36 as if stated fully herein.

38. As a result of their actions, Defendants, acting under “Color of law,” deprived Plaintiff of his right to freedom from excessive force without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. Section 1983.

39. Defendants subjected Plaintiff to these deprivations of his rights either maliciously or by acting with a reckless disregard for Plaintiff’s civil rights.

40. As a result of the aforesaid occurrence, Plaintiff suffered the damages and injuries aforesaid. All Defendants are liable for said damage and injuries.

#### **FIFTH CAUSE OF ACTION**



### **For Violation of Civil Rights**

41. Plaintiff reiterates and realleges the facts stated in paragraphs 1 through 40 as if stated fully herein.

42. Defendant, City of New York, Defendant New York City Police Department, through their Police Commissioner, and defendant New York City Department of Corrections, as municipal policymakers, in the hiring, training and supervision of Defendants, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain, and in particular, the Plaintiff, thereby violating Plaintiff's rights to freedom from the use of excessive and unreasonable force and freedom, from deprivation of liberty, and from loss of liberty without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. Section 1983 and 42 U.S.C. Section 1985.

43. As a direct and proximate result of the aforementioned policy and custom of deliberate indifference of Defendants, New York City, New York City Police Department, and New York City Department of Corrections, and other defendants committed the unlawful acts referred to above and thus, Defendants New York City, New York City Police Department and New York City Department of Corrections and other defendants are liable for the Plaintiff's injuries.

### **SIXTH CAUSE OF ACTION**

#### **Failure to Intervene**

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. Defendant police officers had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in the presence of other officers.

46. Defendant police officers failed to intervene to prevent the unlawful conduct described herein.

### **SEVENTH CAUSE OF ACTION**

#### **Negligent Hiring, Retention, Training and Supervision**

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The defendant, City of New York, defendant New York City Police Department and the New York City Dept. of Corrections and their employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants P.O. George Allen, Sgt. Yancy Blowe, Sgt. Lawrence, and Police Officers John Does #1-3, and unknown corrections employees, individuals who were unfit for the performance of police duties on April 19, 2014, at the aforementioned location and correction facilities thereafter.

### **EIGHTH CAUSE OF ACTION**

#### **INTENTIONAL TORT**

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The defendants, P.O. George Allen, Sgt. Yancy Blowe, Sgt. Lawrence, and police officers John Does # 1-3, are guilty of and liable to the plaintiff for their actions for

intentional torts and thereby caused damages to the plaintiff.

#### **NINTH CAUSE OF ACTION**

##### **NEGLIGENCE**

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The plaintiff's injuries and damages are the result of the defendants' negligence in the use of force, police procedures, arrests and law enforcement procedures.

53. Further, the defendants were liable in negligence in failing to afford the plaintiff medical care and adequate medical treatment.

#### **TENTH CAUSE OF ACTION**

##### **FAILURE TO SUPERVISE OR PROPERLY TRAIN PERSONNEL**

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The injuries and damages sustained by plaintiff were a direct result of the failure of the defendants to properly train police officers or Corrections Dept. employees.

56. Further, the injuries and damages sustained by plaintiff arose from the defendants' failure to properly supervise police officers and employees.

57. Further, the injuries and damage sustained by plaintiff are a result of the defendants hiring inadequate personnel.

#### **ELEVENTH CAUSE OF ACTION**

##### **FAILURE TO TREAT**



58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. That the plaintiff repeatedly requested medical treatment for injuries to his hand.

60. That the defendants, arresting officers P.O. George Allen, Sgt. Yancy Blowe, Sgt. Lawrence, John Does #1-3, the NYC Police Department and the NYC Dept. of Corrections failed, refused and/or neglected to afford the plaintiff medical treatment for his injured hand.

61. As a result, plaintiff has a permanent loss of full use, flexion and extension of his fingers in his hand.

## **TWELFTH CAUSE OF ACTION**

### **MALICIOUS PROSECUTION**

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. That there was no basis for the prosecution of the plaintiff.

64. The defendants failed to investigate, refused to listen and heed relevant information from eyewitnesses and proceeded to arrest and prosecute the plaintiff despite the fact that the plaintiff was a victim of a crime, and not a perpetrator.

65. Moreover, the plaintiff was a resident of 685 Ralph Ave., Apt. #1A, Brooklyn, NY and allegations of burglary by the defendant were baseless.

66. Plaintiff was thereby subjected to malicious prosecution.

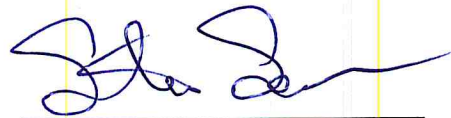
WHEREFORE, plaintiff demands judgment against the defendants on each cause of action in a substantial sum of money which exceeds the jurisdictional limits of all the lower courts that would otherwise have jurisdiction, and which amount will be determined by the jury or trier of fact against the defendants at the time of trial; together with the interest, costs and disbursements herein;

a. Further, that the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

b. That the plaintiff have such other and further relief as the Court shall deem just and proper.

Dated: New York, New York  
December 17, 2014

By:



STEVEN SEENER, ESQ.  
SEENER & SEENER, ESQS.  
*Attorneys for Plaintiff*  
TREMAINE HAYWARD  
11 Park Place - 10th Floor  
New York, New York 10007  
Telephone No. 212-766-2050

### ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the courts of the State of New York, shows that affirmant is a partner in the firm of SEENER AND SEENER, attorneys of record for the Plaintiff(s) in the within action, that affirmant has read the foregoing BILL OF PARTICULARS and knows the contents thereof; that the same is true to the affirmant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes it to be true.

Affirmant further says that the reason this verification is made by affirmant and not by said Plaintiff(s) is that Plaintiff(s) are not residents of the County in which affirmant maintains his office.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are as follows: Document's in affirmant's file.

The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York  
December 17, 2014



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STEVEN SEENER



SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

=====X

TREMAINE HAYWARD,

INDEX #

Plaintiff,

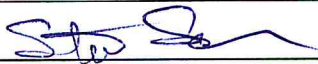
-against-

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Defendants.

=====X

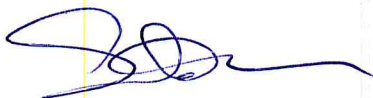
SUMMONS AND COMPLAINT

  
SEENER & SEENER, ESQS.  
BY: STEVEN SEENER, ESQ.  
ATTORNEYS FOR PLAINTIFF  
TREMAINE HAYWARD  
11 Park Place - 10th Floor  
New York, New York 10007  
(212) 766-2050

CERTIFICATION

The foregoing PLEADINGS & PAPERS ARE hereby certified pursuant to 22  
N.Y.C.R.R. 1301.1

Dated: New York, New York  
December 17, 2014



STEVEN SEENER, ESQ.